CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
SPECIAL COMMISSION MEETING
November 24, 2009
6:00 P.M.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. ROLL CALL:

The City Commission of the City of Opa-locka, Miami-Dade County, Florida, met in a special session on Tuesday, November 24, 2009 at 6:00 p.m. in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida. The following members of the City Commissioner were present: Commissioner Dorothy Johnson, Vice Mayor Myra L. Taylor, Commissioner Timothy Holmes and Mayor Joseph L. Kelley. Also in attendance were: Interim City Manager Bryan K. Finnie, City Attorney Burnadette Norris-Weeks and City Clerk Deborah S. Irby. Commissioner Rose Tydus was not in attendance.

2. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

3. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

4. RESOLUTIONS:

Manager Finnie deferred agenda item 4-9 to the December 9, 2009 regular commission meeting.

Vice Mayor Taylor deferred agenda item 4-2 to the December 9, 2009 regular commission meeting.

Pursuant to the direction from the City Attorney, Mayor Kelley advised that the Commission must allow for public input.

He further opened the floor for public comments. There being no persons to come forward for public comments, the public input was closed.

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ESTABLISH A LABOR WORKFORCE PROGRAM TO SAFEGUARD ABANDONED AND

UNSAFE RESIDENTIAL PROPERTIES WITHIN THE CITY OF OPA-LOCKA, AT A TOTAL COST OF FIFTY THOUSAND DOLLARS ($50,000.00), PAYABLE FROM ACCOUNT NO. 44-541620. *Sponsored by J.K.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

There being no discussion, the motion passed by a 4-0 vote.

Vice Mayor Taylor	Yes
Commissioner Tydus	Not present
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AUTHORIZING THE CITY MANAGER TO EXPEND FUNDS IN AN AMOUNT NOT TO EXCEED FIVE THOUSAND DOLLARS ($5,000.00) FOR A CIVIL RIGHTS SUPPER TO BE HELD ON JANUARY 16, 2010, PAYABLE FROM ACCOUNT NO. 79-579403. *Sponsored by M.T.*

The above item was deferred by Vice Mayor Taylor to the December 9, 2009 regular commission meeting.

3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO MAKE A DONATION OF TWO THOUSAND DOLLARS ($2,000.00) TO THE 2009 SPECIAL NEEDS TOY RUN SPONSORED BY THE BLACK GLOBAL BIKERS ASSOCIATION, INC. AND L.B.S. SPECIAL ANGELS INC., PAYABLE FROM ACCOUNT NO. 19-519493. *Sponsored by D.J.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

Commissioner Johnson stated for the record that she hadn't paid her membership for the Global Bikers; however, she does plan to get a bike which she will pay from her personal funds.

Vice Mayor Taylor asked, since the Black Global Bikers Association, Inc. is not based in Opa-locka, has Commissioner Johnson identified any special needs children in Opa-locka?

In the past years that the city had participated with the Black Global Bikers Association, Inc. and L.B.S. Special Angels, Inc., Commissioner Johnson stated that both of those entities are not located in the City of Opa-locka; however, many of the kids that are recipients are from the City of Opa-locka.

There being no further discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AUTHORIZING THE CITY MANAGER TO EXPLORE THE ESTABLISHMENT OF A FORECLOSED HOME ACQUISITION AND REHABILITATION PILOT PROGRAM FOR THE CITY OF OPA-LOCKA. *Sponsored by D.J.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

5. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DIRECTING THAT ALL ORDINANCES AND/OR RESOLUTIONS WHICH REQUIRE CONTRACTS AND/OR MEMORANDUMS OF UNDERSTANDING (MOU'S) FOR APPROVAL BY THE CITY COMMISSION ACCOMPANY THE ORDINANCES AND/OR RESOLUTIONS AT TIME OF COMMISSION APPROVAL. *Sponsored by D.J.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

There being no discussion, the motion passed by a 4-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Mayor Kelley	Yes

6. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO REQUEST A ONE (1) YEAR EXTENSION TO THE INTERLOCAL AGREEMENT BETWEEN THE MIAMI-DADE METROPOLITAN PLANNING ORGANIZATION (MPO) AND THE CITY OF OPA-LOCKA FOR GRANT FUNDING RELATED TO THE FY 2009 MUNICIPAL GRANT PROGRAM. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commission Holmes to pass the above resolution.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

7. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING THE PROPOSAL FROM _____ IN RESPONSE TO RFP NO. 09-1016 – "LAWN MAINTENANCE, ALLEY CLEANING AND MEDIAN MAINTENANCE SERVICES"; FURTHER AUTHORIZING THE CITY MANAGER TO NEGOTIATE AN AGREEMENT WITH _____, FOR LAWN MAINTENANCE, ALLEY CLEANING AND MEDIAN MAINTENANCE SERVICES, FOR FINAL APPROVAL BY THE CITY COMMISSION. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

Based on the review and qualifications, Manager Finnie advised that staff is recommending four companies and the company receiving the highest score is McFamily with the price of $198,600.00 per year, Salman Maintenance, Inc. ($165,000.00), My Lawn Services, Inc. ($275,800.00) and Roadrunner Professional Services, Inc. ($240,000.00).

It was moved by Commissioner Johnson, seconded by Commissioner Holmes for discussion.

Mayor Kelley advised that the blank had to be filled in.

Commissioner Johnson stated that the City Manager is recommending McFamily; however, the Commission can insert those companies they feel are best qualified.

Mayor Kelley said that he heard the recommendation of the City Manager but whoever is making the motion should insert a company. He asked, was Commissioner Johnson inserting the City Manager's recommendation?

Commissioner Johnson said she was not inserting the City Manager's recommendation; however, she had a question with the recommendation the City Manager made.

Commissioner Johnson and Commissioner Holmes withdrew their motion and seconded.

Attorney Weeks clarified that the Commission asked the City Manager to insert the information in and that would have been the motion and seconded being approved.

Mayor Kelley asked, and then the Commission can change the company?

Attorney Weeks replied, yes.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes for discussion on the City Manager's recommendation of McFamily.

Commissioner Johnson asked, does any member on the reviewing committee and/or employee have a relationship with any of the vendors?

Manager Finnie said he had discussed family relationships with the members of the committee and based on the response, no one has any family relationship with any of those who have responded.

Commissioner Holmes asked, is this the only vendor the city will contract with?

Based on the criteria RFP, Manager Finnie advised that the city is limited to one vendor.

Vice Mayor Taylor asked, can the scope of services be split between vendors?

Attorney Weeks advised that the RFP didn't call for more than one vendor; therefore, the City Commission would have to reject all bids and re-bid this out.

Vice Mayor Taylor expressed her concern with regards to the vendor coming back and asking for more money.

Manager Finnie stated that staff's recommendation is for McFamily which came in at $198,000.00 and it is his gut that the right price is in the $200,000.00 range. He said

usually when an increase in the contract is made especially for grass cutting it's because the city has asked the applicant to do additional duties.

Commissioner Johnson asked, didn't the RFP indicate that the city can have at least three vendors?

Manager Finnie said he doesn't believe the city solicited more than one vendor.

Commissioner Johnson asked for advisement from the City Attorney because the City Manager has made his recommendation which she will not support. She asked, does the Commission go through this motion then come back and fill in the blank?

Attorney Weeks stated that the City Commission could amend the motion, vote on the amendment first then go back to the main motion which would probably fail if the amendment passes.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to amend the motion recommending Roadrunner Professional Service LLC.

Commissioner Holmes said he didn't have a problem with Commissioner Johnson's recommendation but he wants to make sure it is done the right way. The City Commission should have rejected the City Manager's recommendation and then come back with another recommendation. The City Commission can't have the City Manager put in a recommendation then they amend it and put another recommendation in because then they'll have two. They have to reject one recommendation and then come back with another recommendation.

Mayor Kelley stated that's the very question that was asked of the attorney and the attorney is saying that the City Commission has to amend it.

Attorney Weeks advised that Robert's Rules will allow the City Commission to amend it. The question in the beginning was can you discuss it without having a motion on the floor. The City Commission does need a motion on the floor and they can amend the motion, vote on the motion for the amendment and then if it fails it goes back to the main motion.

Commissioner Johnson asked, has the company the City Manager recommended performed any services for the city in the last 5 years?

Manager Finnie replied, yes.

Commissioner Johnson asked, what type of agreement did the city have with that company at that time?

Manager Finnie stated that there was a lawn service agreement and from his understanding the quality of work was fine; however, at the time they did not have a license to handle the city's business.

Commissioner Johnson asked, how can a vendor provide services to the City of Opa-locka, have a contract and don't have a license?

Manager Finnie stated that the vendor in question provided services prior to him coming to the city; but based on his research all vendors are licensed.

Vice Mayor Taylor said she is going with the quality of work and the city had a lawn service that had quality of work so well until the county reinvested in the City of Opa-locka.

Manager Finnie stated that if Vice Mayor Taylor is referring to My Lawn Service and their handling of the Route 9 corridor, NW 27th Avenue and NW 22nd Avenue then yes the county allocated $300.00 additional dollars landscaping for Opa-locka projects because they were impressed with their work.

There being no further discussion, the motion on the amendment for Roadrunner Professional Service LLC passed by a 3-1 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Not present
Vice Mayor Taylor	No
Commissioner Holmes	Yes
Mayor Kelley	Yes

The motion on the original motion with the City Manager's recommendation of McFamily failed by 3-1 vote.

Commissioner Holmes	No
Commissioner Johnson	No
Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Mayor Kelley	No

8. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ESTABLISH FOUR (4) SEPARATE BANK ACCOUNTS FOR THE EDWARD BYRNE MEMORIAL JUSTICE ASSISTANCE GRANT (JAG) PROGRAM; THE COPS HIRING RECOVERY PROGRAM GRANT; THE COPS LAW ENFORCEMENT TECHNOLOGY GRANT AND THE WEED AND SEED COMMUNITIES COMPETITIVE PROGRAM. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

Commissioner Johnson requested that the City Manager state for the record what bank the city would utilize for these accounts.

Manager Finnie replied, the city's bank of record Bank Atlantic.

There being no further discussion, the motion passed by a 4-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Mayor Kelley	Yes

9. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING AND APPROVING _____ AS THE MOST RESPONSIVE AND RESONSIBLE BIDDER IN RESPONSE TO IFB NO. 09-0911 FOR SHERBONDY PARK PHASE ONE CONSTRUCTION IMPROVEMENTS; FURTHER AUTHORIZING THE CITY MANAGER TO NEGOTIATE AN AGREEMENT WITH _____, FOR FINAL APPROVAL BY THE CITY COMMISSION. *Sponsored by C.M.*

The above resolution was deferred by the City Manager to the December 9, 2009 regular commission meeting.

5. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to adjourn the meeting at 6:22 p.m.

MAYOR

ATTEST:

CITY CLERK